

SALE: Calista is at an offer presentation appointment with a seller. She has received offers from a wide variety of buyers with different types of financing. During the appointment, she works with the seller to eliminate offers on the basis of financial terms and conditions, including the offer amount, loan amount, loan program or type of loan. At the end of the evaluation, her client selects a conventional financing offer with 10% down which was \$5,000 less than the highest offer received from a buyer using 100% financing.

This is not discrimination based on source of income. sellers (with advice of agents) are not prohibited from considering the terms of an offer, but rather the source of the monies that will be used to purchase.

RENTAL: Aranya goes on a rental Listing appointment in Prince George's County. The property owner, Tamar, is adamant that he will not rent to any tenants using rental assistance of any sort. Aranya explains that Maryland real estate Licensees and landlords must accept applications and seriously consider applicants using rental assistance programs to cover the cost of their rent. Tamar reluctantly agrees that he will accept applications from rental assistance applicants but only after these applicants have an interview.

This is potentially source of income discrimination. Requiring interviews, current residence inspections, or other additional screening requirements only for those with rental assistance is potentially discrimination in terms or conditions.

SALE: Hayma has received a rental application from Everett, a tenant planning to use a rental assistance program to cover the cost of his rent. Upon a review of Everett's application and credit report, Hayma and her client note that he has an unpaid utility collection and one prior eviction. Based upon this application information, his application is denied. Is this discrimination?

This is not source of income discrimination.

3. Licensees and consumers should direct their concerns and complaints for source of income discrimination to:

MARYLAND COMMISSION ON CIVIL RIGHTS:

<https://mccr.maryland.gov/Pages/Intake.aspx>

MARYLAND REAL ESTATE COMMISSION:

www.dllr.state.md.us/cgi-bin/ElectronicLicensing/CIPS/complaintform1.cgi?board=11&lib=DLLR



DEPARTMENT OF LABOR

Division of Occupational and Professional Licensing
Maryland Real Estate Commission